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#### DECISION 38/2024

The Hellenic Data Protection Authority convened in a session on 08/10/2024, following an invitation from its President, to examine the case referred to in the background of this document. Present were the President of the Authority, Konstantinos Menoudakos, and the regular members of the Authority, Spyridon Vlachopoulos, Konstantinos Lamprinoudakis, as rapporteurs, Aikaterini Iliadou, Christos Kalloniatis, Grigorios Tsolias, and the alternate member, Nikolaos Libos, substituting for the regular member, Charalambos Anthopoulos, who, although duly summoned, did not attend. Present, without voting rights, were G. Panagopoulou and Ch. Symeonidou, auditors of the Authority, as assistant rapporteurs, and Irini Papageorgopoulou, an employee of the administrative affairs department, as secretary.

The Authority took into account the following:

According to decision 16/2024 of the Authority, the collection of personal data of expatriates, including electronic communication details, by Anna Michel Asimakopoulou, from the former Secretary of Expatriates of New Democracy, outside the pre-election period, through electronic means (WhatsApp application), constitutes unfair, non-objective, and unlawful processing: Given that the said processing (collection) was carried out in violation of a series of provisions of electoral legislation, it could not reasonably be expected by the subjects (overseas voters) that their personal data, held by the Ministry of Interior for the purpose of exercising their electoral rights, including their electronic communication details, would be in the possession of a Member of the European Parliament and used for the purpose of political communication via email. For the same reason, further individual processing actions for the same purpose, namely the creation of a new file for upload to the MailChimp service, which included the name, country, and email of the voters, and the use of the email address of expatriates for sending political communication, are also unfair and illegal. Moreover, the aforementioned processing of overseas voters' data cannot be supported by the legal basis of legitimate interests (Article 6(1)(f) of the GDPR), since, taking into account the above circumstances, the right of expatriate voters to the protection of their personal data clearly outweighs the legitimate interest of the Member of the European Parliament to communicate with them individually for the dissemination of her political actions and ideas. Additionally, appropriate and GDPR-compliant (Article 14) information was not provided to the subjects, particularly regarding the source of their data, resulting in a violation of the principle of transparency of processing. Therefore, the processing of expatriate data carried out by Anna Michel Asimakopoulou during the period from 20/1/2024 to 1/3/2024 violated the fundamental principles of legality, objectivity, and transparency of processing, according to Article 5(1)(a) of the GDPR.

In the same decision, the Authority found that the file containing personal data of all registered overseas voters for the June 2023 elections, for which the Ministry of Interior is the data controller, and for which the applicable legislation does not provide any case for its transfer outside the Ministry, was circulated outside the Ministry. Although it was not possible to ascertain how this transfer occurred, this fact undoubtedly constitutes an incident of breach of confidentiality of personal data and thus a personal data breach, according to the definition of Article 4(12) of the GDPR, as it is certain that existing measures were violated and there was unauthorized disclosure of personal data, which was subsequently subjected to further processing. Furthermore, the policies and procedures followed by the Ministry for the mass export and internal circulation of data of overseas voters did not contain specific provisions (special security measures during the circulation of files) and restrictions (regarding the recipients of the files), nor provisions for the recording and documentation of actions as well as the approval of the purpose of export. Furthermore, the designed procedures do not include any measures to limit risks posed by human factors (which, according to the Ministry, proved to be decisive and

critical). It should be noted that the risk from human factors is cited by the authorities' data as a key factor causing incidents of personal data breaches,

3

while it had been specifically highlighted by the Authority since 2018. It also emerged that the measures implemented were not reassessed for the specific needs of processing the voter lists from abroad. Additionally, deficiencies were identified in the procedures and policies for data protection (as mentioned in the context of accountability in Article 24 of the GDPR), namely that the data controller did not effectively implement appropriate technical measures for recording user actions at the time of determining the processing means, nor organizational measures for the application of data protection principles, as provided in Article 25, paragraph 1 for data protection by design. Furthermore, it was found that the submitted Data Breach Notification did not include publicly announced information that had been mentioned in an interview with the Minister prior to the submission of the notification. By handling the incident in this manner, the Ministry did not fulfill its obligations under Article 33, paragraphs 3, 4, and 5 of the GDPR regarding the notification of personal data breaches to the supervisory authority. Finally, deficiencies and inaccuracies were observed in the content of the maintained activity records concerning the Integrated Election Process Support System (IESPS), as required by Article 30 of the GDPR. Consequently, it was found that the Ministry of Interior violated i. Articles 5, paragraph 1, point f and Article 32 of the GDPR, ii. Article 25.1 of the GDPR, iii. Article 33, paragraphs 3, 4, and 5 of the GDPR, and iv. Article 30 of the GDPR.

Regarding the New Democracy party and Nikos Theodoropoulos, the Authority postponed the issuance of a decision, given that the latter, after the hearing and the submission of memoranda, provided a sworn affidavit as new evidence, which could be taken into account by the Authority in the context of the ex officio investigation and from the content of which the need for further investigation of the claims presented therein emerged. Subsequently, in the context of examining the case concerning the potential liability of the political party "New Democracy" (ND), the former Secretary of Overseas Greeks of the same party, Nikos Theodoropoulos, and any other individuals, with Decision 22/2024 of the Plenary of the Authority, it was decided to present the new evidence provided by Nikos Theodoropoulos to the other parties, to summon New Democracy, Nikos Theodoropoulos, Michalis Stavrianoudakis, and Menios Koromilas for another hearing, and to summon in person A and B for clarification, while it was also ordered that both New Democracy and Nikos Theodoropoulos send, prior to the hearing, a copy of the original Non-Disclosure Agreement they had signed.

4

Following the above, with the letters numbered G/EXE/2261, 2262, 2263, 2264, 2265, 2266/28-08-2024, the Authority summoned New Democracy and B, Menios Koromilas, Nikos Theodoropoulos, Michalis Stavrianoudakis, and A, to a hearing before the Plenary at the headquarters of the Authority on 17/9/2024 at 10:00 a.m. With the same documents, the Authority transmitted to New Democracy and to Menios Koromilas and Michalis Stavrianoudakis the supplementary documents numbered G/EIS/6299/31-07-2024, G/EIS/6366/02-08-2024, G/EIS/6364/02-08-2024, G/EIS/6365/02-08-2024, G/EIS/6363/02-08-2024, and G/EIS/6362/02-08-2024 that had been submitted by Nikos Theodoropoulos, as described in Decision 22/2024 of the Authority.

During the hearing on 17/9/2024, the following individuals were present:

- 1) On behalf of New Democracy, the lawyers Panagiota Moschandreou (Bar Association No. ...) and Vasileios Gakopoulos (Bar Association No. ...) and Ioannis Papaioannou, Deputy Director of Information Technology.
- 2) Nikos Theodoropoulos, with his attorneys, Leonidas Kotsalis (Bar Association No. ...), Alexis Stefanakis (Bar Association No. ...), Vasileios Psychas (Bar Association No. ...), Roussa Tsoukalas (Bar Association No. ...), and Konstantinos Kotsalis (Bar Association No. ...).
- 3) On behalf of Menios Koromilas, his attorneys Ioanna Saketou (Bar Association No. ...) and Ioanna Lagoumidou (Bar Association No. ...).
- 4) On behalf of Michalis Stavrianoudakis, his attorney Polyxeni Bovoli (Bar Association No. ...).
- 5) On behalf of B, the attorneys Panagiota Moschandreou (Bar Association No. ...) and Vasileios

Gakopoulos (Bar Association No. ...).

6) A, whose Responsible Declaration was invoked by Nikos Theodoropoulos (G/EIS/6299/31-07-2024 document - see Decision 22/2024).

During the session, the parties presented their claims, and they were given a deadline for a memorandum until Thursday, 26/9/2024. Menios Koromilas submitted the G/EIS/7433/26-09-2024 memorandum, New Democracy submitted the G/EIS/7435/26-09-2024 memorandum with the relevant attachments, B submitted the G/EIS/7436/26-09-2024 memorandum, and Nikos Theodoropoulos submitted the G/EIS/7447/27-09-2024 memorandum with the attached documents. Specifically, the following were supported by the aforementioned parties:

5

During the discussion, A was asked about the content of her responsible declaration dated 31/7/2024, which was submitted to the Authority by Nikos Theodoropoulos with his document G/EIS/6299/31-07-2024 (see decision 22/2024). A maintained her responsible declaration, and when asked which person or persons from the New Democracy party instructed Nikos Theodoropoulos to forward the electoral lists to Anna Michelle Asimakopoulou, she reserved the right to mention them in writing within the deadline that the Authority would grant her. However, no relevant document was submitted to the Authority.

B argued that the screenshots submitted by Nikos Theodoropoulos as G/EIS/6363/02-08-2024 are part of the election results in the countries mentioned, thus concerning communication regarding election results from abroad, which are received from the party's electoral representatives. He stated that this communication falls within the scope of responsibilities of both himself as ... and Nikos Theodoropoulos as (then) Secretary of Diaspora, and is not related, as he claims, to the case under consideration. He further emphasized that he was not aware that Nikos Theodoropoulos possessed electoral lists and stated that the possession of electoral lists is not causally linked to the recording of election results nor does it add any value to that recording, as claimed by Nikos Theodoropoulos, since the statistical analyses conducted and the tables prepared did not require the possession of electoral lists and did not contain information regarding the age and gender of the voters. For this reason, B argued that his receipt of these tables does not constitute acceptance that the sender possessed electoral lists and stated that from their submission, no instruction to Nikos Theodoropoulos arises nor does it appear that the latter acted for the purposes of the party. Regarding the sending of the file via WhatsApp to Anna Michelle Asimakopoulou, he emphasized that he was unaware of the existence of the file, that its transmission was not done at his instruction, and that the file was forwarded without the knowledge of New Democracy and himself, ..., and reiterated that there is no liability on his part or that of New Democracy for the leak of the relevant file and for the unsolicited communication of Anna Michelle Asimakopoulou with voters abroad via email.

Menios Koromilas reiterated the points made in his memorandum dated 25/7/2024 (see decision 22/2024), arguing that from the new evidence submitted by Nikos Theodoropoulos, no new data regarding his involvement was provided and that therefore no processing of the file by him arises, while, regarding the forwarding of the relevant Excel file to Nikos Theodoropoulos, he repeats that he did not process it, did not determine either the purpose or the technical and organizational measures for conducting this processing, and therefore cannot be considered a responsible processor, according to the GDPR.

New Democracy referred to its previous written and oral statements, as well as to all submitted evidence, which concerns, on the one hand, the general legislation, the structure, organization, operation, and procedures of the party, including the responsibilities of its bodies and the published personal data protection policy of the party, and on the other hand, all technical and organizational measures it takes as a responsible processor, their documentation, its policy on Cybersecurity, and internal compliance measures, from the application of which, as it stated, no violation has been identified or reported. Regarding the information provided to party officials about personal data protection, New Democracy cited the training seminars conducted by its Data Protection Officer (DPO) and the related invitations to all collaborators (on 5/4/2021), to the Diaspora Secretariat (on

28/2/2022), and to the Secretaries for updates from the DPO on 15/6/2022. It also noted that Nikos Theodoropoulos has followed the prescribed procedure to request member data 15 times from the party's IT Department and participated in cooperation with the party's DPO in updating the Regulation for Foreign Organizations regarding personal data. Regarding the personal data processing under examination, New Democracy argued that each natural person, regardless of whether they have party responsibilities and attributes, is an autonomous personality; therefore, acts or omissions by them, in principle and unless proven otherwise, occur without the knowledge or instruction of the party, and that both Anna Michelle Asimakopoulou, as a candidate with the party, and Nikos Theodoropoulos, as a party official and having an excellent relationship with her, could potentially act for their own purposes. New Democracy also stated that there is no signed confidentiality agreement with Nikos Theodoropoulos, a fact unrelated to the case under consideration because, as it argued, there is no causal link between the lack of a contract and illegal processing, such as the forwarding of the relevant file, since any confidentiality agreement would concern the party's member file and would not cover any unlawfully obtained information.

7

file, while the Secretary has an obligation to comply with the terms of the GDPR, regardless of the existence of a contract. Furthermore, New Democracy argued that it never instructed Nikos Theodoropoulos through any of its officials or organs to assist Anna Michel Asimakopoulou, specifically via WhatsApp for the purpose of promoting postal voting. Commenting on the additional evidence submitted by Nikos Theodoropoulos, New Democracy stated that, on the one hand, it consists of personal statements and assessments by him and A, and on the other hand, it includes elements unrelated to the case. Specifically, regarding the screen captures numbered G/EIS/6363/02-08-2024 (communications and file transfers via WhatsApp between Nikos Theodoropoulos and B), New Democracy indicated that they are merely representations of overseas election results, the recording and documentation of which falls under the responsibilities of the Secretary of Diaspora, that they are not related to the maintenance of electoral rolls as they contain only results by country and city and not statistics related to age and gender, nor did the existence of their email addresses add any value. It also submitted to prove the content of the excel file "Diaspora – Election Results 21\_5\_23.xls" which is depicted, as it states, in the submitted WhatsApp conversations between Nikos Theodoropoulos and B, prior to the receipt of the contested file from the Ministry of Interior. Therefore, it argued that the newly submitted evidence is not connected to the notion of an instruction from the party as the data controller and is unrelated to the case, thus no relevant responsibility can be attributed to it regarding the issue of the leak of the contested file nor for the unsolicited communication via email.

Nikos Theodoropoulos, both orally during the hearing and in his memorandum, reiterated that all his actions in the context of the case were intra-party, only with party officials, to serve the party's goals and were based on structured and hierarchical relationships. He emphasizes that what he requested and received were the electoral rolls and not any list of expatriates or a list with emails, and that Anna Michel Asimakopoulou had been decided by the party to assist in her party capacity and as a party organ in promoting postal voting. Regarding New Democracy's claim concerning the files received by ..., Nikos Theodoropoulos submitted additional evidence regarding the detailed statistical analyses that, as he states, the party conducts after each electoral contest, based on the city, gender, and age of the voters. In this regard, he submitted a screen capture (WhatsApp Image) showing a table from an excel file titled "Diaspora – Election Results June 2023 – Detailed," which includes the columns "City," "ND" (note: percentage), "Women %," "Median Age." Furthermore, to prove that, contrary to New Democracy's claim, it is a widely accepted practice to circulate files with personal data via personal email addresses and through WhatsApp among party officials, he refers to point 2 of the memorandum from New Democracy dated 26/7/2024 where the sending of personal data to a personal address (...@gmail.com) is requested and submits related conversations with the party's attorney via WhatsApp that include the sending (on 20/11/2021) of an excel file titled "PE Expatriates.xlsx" containing personal data and contact information of members of expatriate organizations. He also mentioned that the files held by the employees of the Secretariat of Expatriates (diaspora@nd.gr),

which were received upon request from the Secretariat to ensure proper functioning, do not match the files he maintained, nor the address provided to him by the party (theodoropoulos@nd.gr). As he argued, the central services of the party were aware that he had access to specific files containing contact information of members and officials, which, upon assuming his duties, he was asked to send to him via WhatsApp and Airdrop, after the initiation of the Authority's investigation, and then to destroy them. To prove this, he submitted conversations with G (...) via WhatsApp on 21 and 22/4/2024 in which the latter appears to thank him for sending excel files, asking him to send more and requesting clarifications regarding the opening of the files he sent via Airdrop. Therefore, Nikos Theodoropoulos argued that the central services and generally the party systematically used WhatsApp for transferring files with personal data among the officials and were aware that the Secretaries themselves had access on behalf of the party to specific files. He also pointed out that the Director of Information Technology of New Democracy, for the updating, from the Secretariat of Expatriates, of the contact information of officials, forwarded the submitted email from 19/11/2023 only to his personal email (...@gmail.com) and not to theodoropoulos@nd.gr. Regarding the training seminars conducted by the Data Protection Officer (DPO) of New Democracy, Nikos Theodoropoulos denied having attended them. Concerning the receipt of the electoral rolls from Menios Koromilas, he emphasizes that he had previously sent him the list of Lithuania, without himself knowing where he obtained these lists on behalf of

9

party. Furthermore, it argues that no Secretariat has ever followed the "prescribed procedure" for the provision of electoral rolls. Finally, he requested his exemption on the grounds that he is not an independently responsible data processor but a party organ based on the Statute, which was authorized to process the data contained in the electoral rolls, which were in fact managed by the party official who sent them to him (Menios Koromilas), in the absence of clearly defined responsibilities from the statute or other document.

It is noted that no party submitted the confidentiality agreement referred to in the operative part of decision 22/2024. New Democracy argued that such an agreement does not exist, while Nikos Theodoropoulos claimed that he signed such an agreement in 2018 at the party's offices, but did not keep a copy.

The Authority, after examining all the elements of the file and having heard the presenters and the assistant presenters, after thorough discussion

#### CONSIDERED IN ACCORDANCE WITH THE LAW

1. From the provisions of Articles 51 and 55 of the GDPR and Article 9 of Law 4624/2019 (Government Gazette A' 137), it follows that the Authority has the competence to supervise the application of the provisions of the General Regulation (EU) 2016/679 for the protection of natural persons against the processing of personal data (hereinafter GDPR), this law, and other regulations concerning the protection of individuals from the processing of personal data. Specifically, from the provisions of Articles 57 paragraph 1 subparagraphs a, f, and h of the GDPR and 13 paragraph 1 subparagraphs g and h of Law 4624/2019, it follows that the Authority has the competence to address complaints submitted to the Authority regarding illegal processing of personal data, to ex officio check the circulation of the file that was illegally leaked from the Ministry of Interior according to decision 16/2024 of the Authority, and to exercise, correspondingly, the powers conferred upon it by the provisions of Articles 58 of the GDPR and 15 of Law 4624/2019.

10

2. As "processing" of personal data according to Article 4 paragraph 2 of the GDPR is understood any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction.

3. As "data controller" (Article 4 paragraph 7 of the GDPR) is defined the natural or legal person, public authority, agency or other body which, alone or jointly with others, determines the purposes and means of the processing of personal data; where the purposes and means of such processing are determined by Union law or the law of a Member State, the data controller or the specific criteria for its designation may be provided for by Union law or the law of a Member State, as "processor" (Article 4 paragraph 8 of the GDPR) the natural or legal person, public authority, agency or other body which processes personal data on behalf of the data controller, while as "third party" (Article 4 paragraph 10 of the GDPR) is understood any natural or legal person, public authority, agency or body, except for the data subject, the data controller, the processor, and the persons who, under the direct authority of the data controller or the processor, are authorized to process personal data. Furthermore, according to Article 29 of the GDPR, "The processor and any person acting under the authority of the data controller or of the processor, who has access to personal data, shall process those data only on instructions from the data controller, unless required to do so by Union law or the law of a Member State." Consequently, in the case of processing of personal data by a natural person on behalf of the data controller, that is, in the exercise of their duties within the framework of the activities and objectives pursued by the data controller, the actions of the natural person are attributed to the legal entity. As noted in the Guidelines 07/2020 of the EDPB regarding the concepts of the data controller and the processor...

11

Processing under the GDPR - Version 2.0 (July 7, 2021)<sup>1</sup> "In practice, the entity acting as the data controller in the sense of the GDPR is the organization as a separate legal entity and not any individual within the organization of the data controller (such as the General Director, an employee, or a member of the Management)" (§ 17). "In principle, any processing of personal data carried out by employees in the context of an organization's activities can be considered to be carried out under the control of that organization (since employees who have access to personal data within the framework of an organization are generally not considered 'data controllers' or 'processors', but 'persons acting under the authority of the data controller or the processor' within the meaning of Article 29 of the GDPR). In exceptional circumstances, however, an employee may decide to use personal data for their own purposes and, consequently, unlawfully exceed the powers granted to them (e.g., to establish their own company or for a similar purpose). Therefore, as the data controller, the organization has a duty to ensure that appropriate technical and organizational measures are implemented, including training and informing employees, which will ensure compliance with the GDPR." (§19). Moreover, "if the data controller carries out processing activities using its own resources, for example through its personnel, it does not become the processor. Employees and other persons acting under the direct supervision of the data controller, such as temporarily employed staff, should not be considered processors, as they process personal data as parts of the entity of the data controller. According to Article 29, they are also bound by the instructions of the data controller" (§ 76)<sup>2</sup>. The same text of the EDPB Guidelines also clarifies the following: "In practice, the processing of personal data involving multiple actors can be divided into several smaller processing activities for which each actor could be considered to determine the purpose and means of processing independently. Furthermore, a sequence or a

<sup>1</sup> Available on the EDPB website [https://www.edpb.europa.eu/our-work-tools/our-documents/guidelines/guidelines-072020-concepts-controller-and-processor-gdpr\\_en](https://www.edpb.europa.eu/our-work-tools/our-documents/guidelines/guidelines-072020-concepts-controller-and-processor-gdpr_en)

<sup>2</sup> See also the relevant Example from the "Handbook on European Data Protection Law" (FRA, 2018): "When the marketing department of Sunshine Company intends to process data for market research, the data controller for that specific processing will be Sunshine Company and not the employees of the marketing department. The marketing department cannot be the data controller, as it does not have a separate identity." (p. 131).

12

A series of processing operations involving multiple parties may also be carried out for the same purpose or purposes, so it is likely that the processing may involve one or more joint controllers. In other words, at the "micro-level," various individual processing operations may appear to be

disconnected from one another, giving the impression that each individual operation may serve a different purpose. However, it is imperative to thoroughly examine whether at the "macro-level" these processing operations should not be considered as a "series of operations" aimed at a common purpose using jointly defined means. (§43). Anyone who decides to process data must consider whether such processing involves personal data and, if so, what obligations they have under the GDPR. A party is considered a "controller" even if it does not intentionally target the personal data as such or has mistakenly assessed that it is not processing personal data. (§44). As has been ruled by the CJEU, any natural or legal person who affects the processing of personal data for their own purposes and thereby participates in determining the purposes and means of the processing may be considered a controller. The existence of legal personality is not a prerequisite for an entity to be classified as a controller. The Union legislator did not distinguish between natural and legal persons for the establishment of liability under the GDPR, as this liability depends solely on the condition that these persons, alone or jointly with others, determine the purposes and means of processing personal data. Therefore, any person who meets this condition—regardless of whether they are a natural or legal person, a public authority, service, or other entity, with or without legal personality—is liable, among other things, for any infringement referred to in Article 83 paragraphs 4 and 6, committed by themselves or on their behalf. Furthermore, for the exemption of a legal entity controller from liability for damages under Article 82 GDPR, it is not sufficient to claim that the damage in question was caused by the fault of a person acting under its supervision, as defined in Article 29 of the GDPR. Specifically, Article 32 paragraph 4 GDPR, regarding the security of processing, provides that the controller shall take measures to ensure that any natural person acting under its authority and having access to such data processes it only on instructions from the controller, unless required to do so by Union or Member State law. Since the employees of the legal entity controller act under its supervision, it is the responsibility of that controller to ensure that its instructions are properly followed by them, and therefore, the legal entity cannot be exempted from its liability merely by claiming negligence or omission of its employee. The Authority has accepted that a natural person—an employee of the controller—may be considered a controller if they use data for their own purposes outside the scope and potential control of the activities of the legal entity.

4. Political parties are associations of persons, which, according to paragraph 6 of Article 29 of Law 3023/2002, acquire legal personality upon their establishment for the fulfillment of their constitutional mission.

5. Article 5 paragraph 1 of the GDPR sets out the principles that must govern processing. According to paragraphs 1 a), b), and f) of this article, "1. Personal data: a) shall be processed lawfully and fairly in a transparent manner in relation to the data subject ('lawfulness, fairness, and transparency'), b) shall be collected for specified, legitimate purposes and not further processed in a manner that is incompatible with those purposes; further processing for archiving purposes in the public interest or for scientific or historical research purposes or statistical purposes shall not be considered incompatible with the initial purposes according to Article 89 paragraph 1 ('purpose limitation'), [...] f) shall be processed in a manner that ensures appropriate security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, using appropriate technical or organizational measures ('integrity and confidentiality')." According to Recital 39 of the GDPR, "Any processing of personal data should be lawful and fair. It should be...

14

It is clear to individuals that personal data concerning them is collected, used, taken into account, or otherwise processed, as well as to what extent personal data is or will be processed. [...] Personal data must be processed in a manner that ensures the appropriate protection and confidentiality of personal data, among other things, to prevent any unauthorized access to such personal data (...). Furthermore, according to the principle of accountability explicitly stated in the second paragraph of the same article and which constitutes a cornerstone of the GDPR, the data controller "is responsible and able to demonstrate compliance with paragraph 1 ('accountability')." This principle entails the obligation of the data controller to be able to demonstrate compliance with the principles of Article 5,

paragraph 1.

6. Processing is lawful (principle of legality) only if and to the extent that it is based on one of the legal bases referred to in Article 6, paragraph 1 of the GDPR. In particular, regarding the legal basis of legitimate interests (Article 6, paragraph 1, f) of the GDPR), Recital 47 of the Regulation states the following: "The legitimate interests of the data controller, including those of a data controller to whom personal data may be disclosed or third parties, may provide the legal basis for processing, provided that they do not override the interests or fundamental rights and freedoms of the data subject, taking into account the reasonable expectations of data subjects based on their relationship with the data controller. Such legitimate interest could exist, for example, when there is a relevant and appropriate relationship between the data subject and the data controller, such as when the data subject is a customer of the data controller or is in the service of the data controller. In any case, the existence of a legitimate interest would require careful assessment, including as to whether the data subject, at the time and in the context of the collection of personal data, can reasonably expect that processing for that purpose may take place. In particular, the interests and fundamental rights of the data subject could override the interests of the data controller when personal data is processed in situations where the data subject does not reasonably expect further processing of their data."

15

Moreover, with paragraph 4 of Article 6 of the GDPR, it is stipulated that the processing of personal data for purposes other than those for which the personal data was initially collected is permitted only if the processing is compatible with the purposes of the initial collection, taking into account the criteria mentioned in this provision and, in particular, the context in which the data was collected and the reasonable expectations of the data subject based on their relationship with the data controller regarding further use. At the same time, Recital 50 of the GDPR makes it clear that the fulfillment of all legality requirements of the initial processing is a necessary condition that must be checked by the data controller before assessing the compatibility of the further processing purpose with the initial one.

7. According to the provisions of paragraphs 1 and 2 of Article 32 of the GDPR regarding the security of processing, "1. Taking into account the latest developments, the cost of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the data controller and the processor implement appropriate technical and organizational measures to ensure an appropriate level of security against the risks, [...] 2. In assessing the appropriate level of security, particular consideration shall be given to the risks arising from the processing, in particular from accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to personal data that has been transmitted, stored, or otherwise processed." Also, according to Article 25, paragraph 1 "Taking into account the latest developments, the cost of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons arising from the processing, the data controller effectively implements, both at the time of determining the means of processing and at the time of processing, appropriate technical and organizational measures, such as pseudonymization, designed to implement data protection principles.

8 "To ascertain whether the purpose of further processing is compatible with the purpose of the initial collection of personal data, the data controller, provided that it meets all the requirements for the legality of the initial processing, must take into account, among other things ..." (Recital 50 of the GDPR)

16

data, such as data minimization, and the incorporation of necessary safeguards in processing in such a way that the requirements of this regulation are met and the rights of data subjects are protected." Furthermore, the provision of Article 24, paragraph 1 of the GDPR states the following: "1. Taking into account the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the data controller implements



appropriate technical and organizational measures to ensure and be able to demonstrate that the processing is carried out in accordance with this regulation. These measures are reviewed and updated as necessary."

8. Furthermore, Article 23 of Presidential Decree 26/2012 "(Government Gazette A' 57/15.03.2012), as replaced by Article 53 of Law 4648/2019 (Government Gazette A' 205/16.12.2019), provides the following: "1. One (1) complete set of electoral rolls in digital media free of charge, as well as one (1) set of copies of publications of the Ministry of Interior of electoral content, are entitled to the parties represented in the Parliament or the European Parliament. Also, the aforementioned items are entitled during the pre-election period to recognized parties, according to the Regulation of the Parliament, as well as those forming combinations in 2/3 of the electoral districts of the State, both for residents and expatriates. 2. Copies of electoral rolls may be made available during the pre-election period for a fee to the public, as determined by the Minister of Interior, to Members of Parliament, Members of the European Parliament, candidates for Parliament, or candidates in regional and municipal elections, and only for the electoral districts, regions, or municipalities where they have been elected, as evidenced by the relevant declarations of their proclamation or where they will be candidates according to their written declaration. 3. The beneficiaries must destroy the electronic media containing the electoral rolls within three months from the completion of the electoral contests according to their written declaration. 4. The terms and conditions for the provision of electoral rolls and other publications to other persons and entities are determined by a decision of the Minister of Interior. 5...". Regarding specifically expatriate voters, according to Article 3 of the aforementioned Law 4648/2019, the special electoral rolls for expatriates are compiled and maintained by the Elections Directorate of the Ministry of Interior and contain the following: "(...) a) the serial number, b) the Special Electoral Number, c) the surname, d) the first name, e) the father's name, f) the mother's name, g) the spouse's name and the father's surname (if it concerns a married woman who bears her husband's surname), h) the date and time of birth, i) the main electoral roll (main electoral district) where they are registered (region, municipality, electoral division), j) the full residential address, k) the email address, l) the contact phone numbers." According to paragraph 2 of the same article, "The provisions of Article 23 of Presidential Decree 26/2012 apply accordingly to the special electoral rolls for expatriates, subject to the data in k) and l) of the above paragraph." From the above provisions, it is clear that the electronic communication data (email address and contact phone number) are excluded from the provision of electoral rolls to the beneficiaries of Article 23 of Presidential Decree 26/2012.

9. In this case, from the examination of the matter and taking into account all the elements of the file, the following findings emerged:

a) As evidenced, the file of the electoral rolls of expatriate voters for the elections of June 2023 was sent via WhatsApp on 23/6/2023 at 17:05 by the then Organizational Secretary of Local Government and Crisis Management of New Democracy, Menios Koromilas, to the then Secretary of Diaspora of New Democracy, Nikos Theodoropoulos. A similar transmission of personal data was claimed by Nikos Theodoropoulos to have occurred through the same means between the same individuals on 26/5/2023 when an Excel file titled "Voters of May 21, 2023 in Lithuania.xlsx" was sent. To prove this, document G/EIS/5980/17-07-2024 was submitted. However, the exact content of this file did not emerge, specifically whether it contained similar categories of data.

b) At the aforementioned time, both of the above individuals were officials of the New Democracy party (see Article 33 of its Statute, according to which "The Secretariats are Organs of the Central Administration of the Party, with the responsibility for the organizational and functional development, direction, and coordination of the areas of action of the Party").

c) The responsibilities of the Secretariat for Expatriates of New Democracy include the "preparation and support of the participation of Expatriate Voters in National Elections."

18

"Election and European Elections" as well as "any other issue that concerns the Party, is important for the Party, and is related to the Overseas Greeks, as well as any other issue that pertains to the Global Hellenism, its interests, and the national interests, according to the guidelines of the Central

Administration of the Party," as stated in the Operating Regulation of Organizations of Overseas Hellenism. Furthermore, as mentioned on the party's website, "The Secretariat of Greeks of the Diaspora, utilizing best international practices, aims to build bridges of communication and cooperation with Greeks abroad, so that those who wish can return to Greece and those who remain outside the country can support our homeland at all levels, collaborate with each other, and be supported by the metropolis in their own efforts. The Secretariat is an evolution of the Secretariat of Global Hellenism" (<https://nd.gr/grammateies/ellinon-tis-diasporas>).

d) The object of the Secretariat of Local Government and Crisis Management of New Democracy is, according to its website, "the analysis and processing of policies regarding Local Government issues. The utilization of the knowledge of its members to support the party's bodies on local and regional government issues. The development of policy proposals for Local Government issues. In all contacts and meetings with local government officials, opinions were recorded on both the new Administrative Reform and other issues concerning Local Government of the first and second degree. The Secretariat of Local Government carries out a series of actions aimed at recording and highlighting issues that concern local government nationwide. At the same time, it supports representatives in collective bodies to strengthen the administrative autonomy and economic self-sufficiency of local government" (<https://nd.gr/grammateies/aytodioikisis-kai-diaheirisis-kriseon>).

e) General information had been provided by New Democracy regarding the implementation of the GDPR and the maintenance of confidentiality towards third parties; however, it was not proven that more specific instructions had been given to the aforementioned Secretaries regarding the processing of personal data within the framework of exercising their broadly defined responsibilities as mentioned above. Furthermore, it was not proven that, in practice, the party's Secretaries sign a confidentiality agreement text like the one presented by New Democracy in standard form (ref. 6 of G/EIS/6216/26-07-2024 memorandum), as no signed corresponding confidentiality agreement between the party and Nikos Theodoropoulos or/and Menios Koromilas was submitted to the Authority by either party.

f) The former Secretary General of the Ministry of Interior Michalis Stavrianoudakis denies Menios Koromilas' claim regarding their telephone communication and the sending of the file by an associate of his office, and this claim is not confirmed by any other evidence in the case.

g) The timing of the sending of the aforementioned Excel files, specifically, the file titled "Voters May 21, 2023 in Lithuania.xlsx" on 26/5/2023 and the file titled "Diaspora by Department – Bulgarian Elections June 2023.xlsx" on 23/6/2023, in conjunction with the submitted evidence, corresponds to the purposes of processing invoked (by the former Secretary of Overseas of New Democracy), namely: A) for the Lithuania file in May, the purpose was to communicate with citizens to deregister from Lithuania in order to vote in Greece, and B) for the file sent on 23/6/2023, the purpose was statistical processing of the results. Furthermore, with his G/EIS/6235/29-07-2024 memorandum, N. Theodoropoulos submitted a screenshot from a WhatsApp conversation in a New Democracy group, from which it appears that on 24/6/2023 he sent a file titled "ELECTIONS COMPARATIVE INTERIM.pdf," which, according to his statements, included the statistical analysis of the participation of overseas voters, while with his G/EIS/7447/27-09-2024 memorandum, he submitted a screenshot (WhatsApp Image) showing a table from an Excel file titled "Diaspora – Election Results June 2023 – Detailed," which includes the columns "City," "ND" (note: percentage), "Women %," "Median Age," and related conversations with ..., B. At the same time, New Democracy submitted with its G/EIS/7435/26-09-2024 memorandum the content of the file "Diaspora – Election Results 21\_5\_23.xls" as depicted, as it states, in the submitted WhatsApp conversations between Nikos Theodoropoulos and B, a fact that demonstrates that indeed Nikos Theodoropoulos was conducting statistical analyses of the election results within the framework of his responsibilities and was sending them to ....

h) It was also found that there was a lack of clear instructions to the Bodies regarding their exact responsibilities and the manner in which they should fulfill their duties, resulting in the unlawful use of the personal data file improperly extracted from the Ministry of Interior for the purpose of detailed statistical analysis of the election results of New Democracy by city, age.

and gender. It was also found that for a long period of time, three senior party officials (Menios Koromilas, Nikos Theodoropoulos, Anna Michel Asimakopoulou) were processing the contentious electoral lists, each at different times.

θ) The party's policy regarding the use of official communication means (email at @nd.gr) pertains only to communications with third parties and does not exclude the use of the medium (WhatsApp application) that was used in this case among organs and officials for party purposes. Moreover, as evidenced by the documents submitted by the former Secretary of Overseas Greeks, the WhatsApp application is widely used for communications within the party as well as for sending files (see G/EIS/6235/29-07-2024 and related G/EIS/7447/27-09-2024 memorandum). From the above evidence, it can be inferred that this specific method of communication and information exchange is a common practice that is followed even for sending files that include personal data.

10. Based on the above, the Authority ruled as follows:

α. Regarding Menios Koromilas:

The Authority ruled by majority that Menios Koromilas transmitted to Nikos Theodoropoulos and thus processed an unlawful list of overseas voters, which contained the emails and contact numbers of overseas voters. This processing was carried out in violation of the provisions that stipulate the legal procedure for delivering electoral lists to political parties during the pre-election period; therefore, it occurred in violation of the fundamental principle of legality (Article 5, paragraph 1(a) in conjunction with Article 6, paragraph 1 of the GDPR). Menios Koromilas is the Data Controller, as his position within New Democracy (Secretary of Local Government and Crisis Management) is not related to the lists of overseas voters, which fall under another Secretariat of the party (Overseas Greeks). Furthermore, it was not proven that the transmission of this list from Menios Koromilas to Nikos Theodoropoulos was done upon the order of a party official. Based on the above and taking into account particularly the lack of authority of Menios Koromilas to process the lists of overseas voters, it should be considered, regarding this specific processing of transmitting the electoral list to Nikos Theodoropoulos, independently and personally as the Data Controller. According to the opinion of two (2) members, specifically Grigoris Tsolias and Nikolaos Libos, there are doubts regarding whether Menios Koromilas acted independently as the Data Controller for his own account or on behalf of New Democracy, according to the details provided below.

β. Regarding New Democracy:

αα. The Authority unanimously found that the technical and organizational measures taken by New Democracy as the Data Controller to ensure and be able to demonstrate that the processing is carried out in accordance with the GDPR (policies) do not include the processing activities of its Secretariats. Although the organization of the party is specific based on its statute, the policies regarding data and personal devices (BYOD) are inadequate and limited to its internal network. This is because, as emerged from the case file, a significant portion of the activities is carried out using personal devices of party officials, for which there is no provision regarding the control of personal data that may be processed on them. Therefore, a violation of Article 25, paragraph 1 of the GDPR arises, because from the design, New Democracy left party organs and personnel, which are known to process personal data, without substantial supervision or guidance. This is a failure from the design, as it was done at the discretion of the Data Controller. Furthermore, according to the opinion of the President and members Spyros Vlachopoulos, Konstantinos Lamprinoudakis, Aikaterini Iliadou, and Christos Kalloniatis, the lack of a data protection policy as well as the absence of practical control rules facilitated the unlawful collection, internal circulation, and retention of the contentious file by the former Secretary of Overseas Greeks, as well as its use for the initial purpose of the file (statistics during the June 2023 elections). In their opinion, it was also found that after New Democracy became aware of the incident under investigation, and after it was established that two party organs were involved in the said unlawful circulation, the party did not proceed with a thorough investigation of the circumstances under which the unlawful processing of data by individuals occurred.

acting under its supervision, in accordance with Article 29 of the GDPR, and did not take appropriate actions to assess the potential need for further measures to prevent the risk of unlawful processing of personal data in the future. The inspection of the computer of the Secretariat within the premises of New Democracy is insufficient, as it was known that data was being kept on personal devices.

bb. Furthermore, the Authority determined by majority that New Democracy must be considered as the Data Controller for the processing of the foreign voters' file by the former Secretary of Overseas Greeks of New Democracy. This processing was carried out in the context of fulfilling the responsibilities and duties assigned to him and served the purposes of the party (demographic statistical analysis of the electoral results of June 2023 for the extraction of political conclusions); therefore, it was done on behalf of New Democracy, as the data controller. This processing was carried out in violation of the provisions that provide for the lawful procedure for the delivery of electoral rolls to political parties during the pre-election period, thus taking place in violation of the fundamental principle of legality (Article 5(1)(a) in conjunction with Article 6(1) of the GDPR).

According to the opinion of two (2) members, specifically Grigoris Tsolias and Nikolaos Libos, there are doubts regarding whether New Democracy acquired the status of Data Controller concerning the possession and processing of the disputed unlawful file by Nikos Theodoropoulos for statistical purposes, according to the details provided below.

c. Regarding Nikos Theodoropoulos:

Nikos Theodoropoulos retained possession of the foreign voters' file for several months (June 2023 to January 2024) and after exercising his responsibilities related to the demographic and statistical analysis of electoral results for the extraction of political conclusions. It is undisputed that he is the person who transmitted the said file to Anna Michelle Asimakopoulou, without it being established that this was done upon party instruction and without any specific party status of Anna Michelle Asimakopoulou (beyond that of one of the MEPs of New Democracy) justifying the sending of the file to her. The vague claims of party instruction were not accompanied by the mention of a specific name. Under these circumstances, the Authority determines by majority that Nikos Theodoropoulos acted independently as the data controller concerning the sending of the foreign voters' file to Anna Michelle Asimakopoulou.

According to the opinion of two (2) members, specifically Grigoris Tsolias and Nikolaos Libos, there are doubts regarding whether the transmission of the disputed unlawful file by Nikos Theodoropoulos to Anna Michelle Asimakopoulou took place on behalf of New Democracy or whether he acted independently as a data controller for his own account, according to the details provided below.

11. According to the opinion of two (2) members, specifically Grigoris Tsolias and Nikolaos Libos, there are doubts as to which of the controlled natural or legal persons acquired the status of Data Controller at each stage of the processing of the disputed file so that liability for compliance or non-compliance with the applicable data protection rules can be attributed.

11.a. Specifically, according to the opinion of member Grigoris Tsolias, despite the finding that the disputed file was unlawfully circulated, it was not proven in an indisputable manner, applying the principle of *in dubio pro reo* according to Article 48(1) of the Charter of Fundamental Rights of the European Union and Article 6(2) of the European Convention on Human Rights, which of the controlled natural or legal persons determined the purpose of processing the personal data contained in the disputed unlawful file. As a result, it becomes impossible to determine the

10 Which, as a general principle of Union law, also applies in administrative proceedings to the extent that the level and degree of severity of the threatened administrative sanctions under the GDPR bear the character of a criminal sanction according to the Engel criteria. For the application of the principle of *in dubio pro reo* as an expression of the presumption of innocence in the application of Union competition law, see CJEU, judgment of 08.07.1999, C-199/92 P, Hüls AG v. Commission of the European Communities, para. 150, judgment of 22.11.2012, C-89/11 P, E.ON Energie AG v. European Commission, paras. 72, 73.

11 See ECHR, Engel and Others v. Netherlands (Grand Chamber), Application Nos. 5100/71, 5101/71, 5102/71, 5354/72, 5370/72, judgment of 08.06.1976.

12 According to the case law of the CJEU, in order to determine whether a specific person or entity should be classified as a Data Controller, it must be examined whether the specific person or entity, alone or jointly with others, determines the purposes and means of the processing. For example, see CJEU C-

24

The Data Controller is identified, and consequently, it becomes impossible to attribute responsibility for compliance or non-compliance with the various data protection rules. The identification of the Data Controller occurs based on factual criteria or through direct designation by legislation. In the first case, the essential element of the concept of the Data Controller refers to the influence exerted on the processing by exercising decision-making powers regarding certain critical aspects of the processing, and particularly relevant is the identification of the person who decided that a processing operation should be carried out to achieve a specific purpose.

From the procedure and the elements of the file, it has undoubtedly emerged that the contested file was unlawfully extracted from the Ministry of Interior and sent by an unknown person to Menios Koromilas, from the latter to Nikos Theodoropoulos, and from the latter to Anna Michelle Asimakopoulou. From the entirety of the above, it follows that the circulation of the said contested file violated the rules of personal data protection and one or more Data Controllers must be sought and identified as mentioned above.

The Authority, with its unanimous decision No. 16/2024, has already established a series of violations of the legislation on personal data protection related to the leak of the contested file from the Ministry of Interior and subsequently with the sending of electronic communication to voters of the diaspora by Anna Michelle Asimakopoulou. In contrast, the Authority, with its unanimous decision No. 22/24, postponed the issuance of a decision on the substance of the case in order to obtain stronger evidence in light of the conflicting claims of the parties under investigation as well as the new elements submitted by Nikos Theodoropoulos. Despite the re-conducting of the hearing of the parties under investigation and the submission of new memoranda, it was not conclusively proven whether the Data Controller was New Democracy or, conversely, one or more of the investigated natural persons independently.

231/22 decision of 11.01.2024, para. 29, C-807/21 decision of 05.12.2023 paras. 39-41 and C-25/17 decision of 10.7.2018, paras. 68, 69, 75.

13 See also Hellenic Data Protection Authority (HDPa) 52/2020 p. 10, para. 5 and European Data Protection Board (EDPB), Guidelines 07/2020 on the concepts of the data controller and the processor under the GDPR, version 2.0, 07.7.2021, p. 8 para. 2, p. 10 para. 12.

14 See EDPB, op. cit., p. 12-13 para. 20 and p. 17 para. 35.

25

Specifically:

Menios Koromilas, who undoubtedly possessed the contested illegal file, which he transmitted to Nikos Theodoropoulos, claimed that he received it from Michalis Stavrianoudakis, through an associate of his, in order to be forwarded to Nikos Theodoropoulos.

The validity of this claim, despite not being confirmed by any other evidence apart from the statements of Menios Koromilas, cannot be excluded given that the contested file was circulated within the Ministry of Interior and ultimately leaked by an unknown person, as unanimously accepted by the Authority with its decision No. 16/2024. Therefore, it was not conclusively proven that the contested file was sent by Michalis Stavrianoudakis or at his direction by an associate to Menios Koromilas.

New Democracy is not legally entitled to possess the contested illegal file, which additionally includes the contact phone numbers and email addresses of overseas voters, given that the latter is intended exclusively for use by the local Embassies and the Ministry of Interior. Nor was it proven that New Democracy received it through party communication channels and that it had it in its archiving systems. Conversely, from the document No. Γ/ΕΙΣ/2325/12-03-2024 of the Ministry of Interior, it

appears that New Democracy had requested and received, like the other parties, CDs with copies of electoral rolls on 13.6.2023, in the legally prescribed form, without

15 “[...] b) The file... was extracted on 8/6/2023 from the database of the Ministry of Interior for a lawful purpose...” (p. 54 ch. B.1, b’)... “[...] from the Authority's investigation, it emerged that a file... extracted on 8/6/2023 from the OSYED system for the purpose of conducting lottery draws for electoral committees... was found outside the Ministry of Interior, in the possession of third parties” (p. 58 para. c’) “For the aforementioned purposes, the files were circulated... Therefore, each of the recipients had the ability for local storage, extraction to removable media, or even transmission of the file via messaging applications” (p. 59 para. e’)... “Consequently, the possibility cannot be excluded that electoral rolls may have been transmitted in the past, or even more recently, via email, to recipients outside the Ministry, although it is not possible to search for evidence to substantiate such a leak... it is probable that some related data were transmitted” (p. 59 para. g’) “communication to the Secretariat of Overseas Greeks of New Democracy, directly or indirectly, for a specific purpose...” (p. 60 para. g’).

16 For detailed findings of the Authority with its unanimous decision No. 16/2024 p. 54 B.1. para. c’ and p. 62 point A: “[...] a file with personal data of all registered overseas voters for the June 2023 elections, for which the Ministry of Interior is the data controller, and for which the applicable legislation does not provide for any case of transmission outside the Ministry, was circulated outside the Ministry.”

26

that is, to include electronic communication details of the voters. Thus, it was established by the Authority with its unanimous decision No. 16/2024 that the electoral records provided by the Ministry of Interior to the political parties in view of the parliamentary elections of May and June 2023 "did not include the email addresses or the contact phone numbers of voters abroad, while no individual in the capacity of a candidate requested a copy of the special electoral lists for abroad for 2023."

In contrast, Nikos Theodoropoulos claims that New Democracy possessed the disputed illegal file and that he received it via WhatsApp from the latter, which is the Data Controller, through Menios Koromilas, in order to conduct statistical analyses acting on its behalf to achieve its intended purposes based on the means it provided him (the disputed illegal file).

Despite the fact that it was proven that New Democracy did not possess the disputed illegal file in its systems, as such possession was prohibited as previously stated, it cannot be excluded that it may have possessed it unofficially and illegally, considering that the party official Menios Koromilas undoubtedly possessed it and forwarded it to Nikos Theodoropoulos. However, in the latter case, it was not established whether Menios Koromilas acted independently on his own behalf or on behalf of New Democracy. Furthermore, it has not been proven from whom Menios Koromilas received the disputed illegal file in order for the Authority to examine and determine whether he ultimately acquired it on behalf of New Democracy or not, so as to subsequently determine whether Nikos Theodoropoulos received it in order to process personal data for statistical purposes on behalf of New Democracy or for his own purposes.

Therefore, the capacity of Menios Koromilas as a party official is not sufficient to establish beyond doubt that his acquisition, possession, and transmission of the disputed illegal file occurred upon instruction and for the account of New Democracy and not independently for his own account. The above doubts are further intensified by the fact that, as previously stated, New Democracy had requested and received on 13.6.2023 from the Ministry of Interior the legal file which did not include the electronic communication details of voters abroad and which was suitable and appropriate for the extraction of statistical results, without the need to process the disputed illegal file to achieve this purpose.

Furthermore, regarding the transmission of the disputed file from Nikos Theodoropoulos to Anna-Michelle Asimakopoulou, which the former possessed for almost six months, he claims that this act took place upon the instruction of a party official, whom he did not name in order for the Authority to further examine the credibility and validity of this claim, and whether this party official acted independently and voluntarily or upon a central party decision. Additionally, [the] A, who had submitted a responsible declaration to the Authority, clarified its content during the hearing, stating that she

ultimately does not have personal knowledge of the personal data nor of the fact that a party official "gave an instruction" to Nikos Theodoropoulos to transmit the disputed file to Anna-Michelle Asimakopoulou.

In any case, even if it is assumed that a party official "gave an instruction" to Nikos Theodoropoulos to transmit the disputed file to Anna-Michelle Asimakopoulou, it does not emerge whether this "instruction" was a personal choice of the party official without the knowledge of New Democracy or a central choice of the latter which the official implemented within the framework of assigned statutory authority.

19 And therefore, it must have been hierarchically superior.

20 In the sense that it comes from an organ that represents and binds the legal entity having decisive authority and acting in the execution of its duties. See also Article 71 of the Civil Code.

21 By analogy, see CJEU judgment of 05.12.2023, case C-807/21, *Deutsche Wohnen SE v. Staatsanwaltschaft Berlin*, para. 44: "As regards legal entities, this implies, on the one hand, as the Advocate General essentially pointed out in paragraphs 57 to 59 of his Opinion, that they are liable not only for violations committed by their representatives, directors, or managers, but also for those committed by any other person acting within the framework of the business activities of those legal entities and on their behalf. On the other hand, the administrative fines provided for in Article 83 of the GDPR in the event of such violations must be able to be imposed directly on legal entities when they can be characterized as responsible for the processing in question."

28

It should be noted that the processing of personal data for the statistical reasons invoked by Nikos Theodoropoulos did not require the possession of the controversial illegal file that was leaked from the Ministry of Interior, which included the contact details and email correspondence of the voters. On the contrary, the same purpose of processing could have been achieved similarly by using the legal file that New Democracy received from the Ministry of Interior on June 13, 2023, as previously stated.

In any case, the processing of personal data by a natural person who has the status of a party official, which includes the possession and transmission of a file, does not create objective liability for the political party to which they belong under the scope of Article 679/2016 of the General Data Protection Regulation (GDPR) and is not sufficient for the latter to acquire the status of Data Controller "by reflection."

From the entirety of the above, it cannot be established whether the individuals under scrutiny who possessed and processed the controversial illegal file, namely Menios Koromilas and Nikos Theodoropoulos, acted on behalf of New Democracy at its instruction or independently for their own personal reasons, thus making it impossible to identify the Data Controller for the determination of an administrative violation, and they should be acquitted in accordance with the principle of *in dubio pro reo*.

11.b. Specifically, according to the opinion of member Nikolaos Libos, according to the definition of Article 4, point 7 of the GDPR: "7) 'data controller': [is] the natural or legal person, public authority, agency, or other body that, alone or jointly with others, determines the purposes and means of the processing of personal data."

A constitutive element of the concept of the data controller according to the above definition is that a natural or legal person "determines" the purpose and means of processing personal data.

The question that arises in this case is how this purpose and means of processing are "determined" and how it is proven that such determination exists at any given time.

29

This can first of all be defined *ex lege* by the law of the EU or by the law of a member state. Indeed, according to the aforementioned provision, this will occur when the law of the Union or the law of a member state defines the purposes and means of processing personal data for the benefit of one or more natural or legal persons, in which case they are defined by law as data controllers.

When the purposes and means of processing are not expressly defined in a legal provision, it is possible for their determination to take place informally or even tacitly. Indeed, according to the spirit that governs the GDPR and the need for the broadest possible protection of personal data, it is not necessary for such determination to be explicitly provided or to be endowed with any legal form. This may occur, for example, when the "determination" in question is carried out autonomously, lawfully, and on behalf of a natural or legal person, which accepts, expects, or de facto incorporates it into the services it offers or its operation.

If it concerns a legal person, then the processing of personal data is attributed to it as the data controller when the natural person carrying it out acts on behalf of the legal person and provided that this occurs in the exercise of the duties of the natural person, within the framework of the activities of the legal person and for the fulfillment of its intended purposes.

According to the CJEU (Case C-25/17 of July 10, 2018, paragraphs 66-68), the concept of the data controller must be interpreted broadly, as this achieves effective and complete protection of the individuals to whom the data relates. For this reason, it should not be considered "that the determination of the purposes and means of processing must be made with written guidelines or instructions from the data controller." It is indeed possible for a natural or legal person to be considered a data controller if it simply "influences" the processing of personal data for its own purposes and thus "participates" in the determination of the purposes and means of processing.

From the preceding considerations, it follows that even when the determination of the purposes and means of processing is not clearly evident from the circumstances, it is still possible for the status of data controller to be "attributed" or "imputed" to a natural or legal person, provided that it "participates" in some way in the

30

Discussion on determination. This certainly facilitates the effective and complete protection of the individuals to whom the data refers. However, it should not be overlooked that the attribution of the status of data controller entails legal consequences, which may, under certain circumstances, be burdensome for the natural or legal person. This should certainly not lead to a limitation of the protection provided to personal data under the GDPR (in dubio pro libertate). However, it imposes the requirement that reasonable doubts regarding the very fact of the determination should not be raised, and that legal uncertainty should not arise from this.

Such doubts arise when it is inferred from indications that there is a "determination of the purpose and means of processing" in a specific case, because, for example, a natural or legal person is not clearly shown to "participate" in the determination of the objectives and means of the specific processing, but merely benefits in practice from it.

Even more doubts arise when the contentious determination is not carried out lawfully but in violation of established legal rules. If this occurs within the framework of the operation of a legal entity by a person who holds the status of "employee" of that entity, then the legal entity is objectively considered to be the data controller, if the "employee" acted at the direction or under the supervision of the legal entity.

In cases where the unlawful actions of the employee caused material or moral damage to another (Article 82 GDPR), a legal entity may, according to the CJEU (CJEU ruling C-741/21, paragraph 52), be liable even when it proves that one of the persons acting under its supervision violated the obligation to follow the instructions given to them.

However, it is questionable whether this objective civil liability for violations of the GDPR can be extended and applied in the field of administrative law. Indeed, as indicated in point b of paragraph 2 of Article 83 GDPR, for the establishment of liability for an administrative offense concerning violations of the GDPR, intent or at least negligence (here referring to: the data controller) must be present.

31



If, therefore, the data controller is a legal entity, then for the establishment of liability for an administrative offense concerning the GDPR, it must be proven or at least accepted beyond any reasonable doubt that the executive officers of the legal entity participated with intent or negligence in the unlawful determination of the means and objectives of the specific processing.

In the present case and regarding the liability of the party of N.D.:

- a) it was not proven or documented beyond any reasonable doubt which executive officer of the party "determined," even informally and tacitly, the purpose and means of processing the personal data of those listed in the electoral rolls of Greeks abroad,
- b) even if one were to accept that the act of Anna Michelle Asimakopoulou could have granted electoral advantages to the party of N.D., it is not legitimate, based on this hypothetical fact of electoral advantages, to attribute to the party of N.D. that in this case it acted as a "data controller,"
- c) this cannot be accepted even more so, because the circulation of the electoral rolls containing the contentious personal data through multiple emails was undoubtedly an act contrary to the GDPR and did not take place "on behalf of" (CJEU C-807/21, of 05.12.2023, paragraph 44) the party of N.D.,
- d) according to the Guidelines 07/2020 of the EDPB, for the status of data controller to be attributed to the legal entity, the persons violating the GDPR must be its "employees," meaning that in the performance of their duties, they must not act independently and autonomously, but as instruments and within the framework of achieving the processing purpose of their employer as the data controller, who decides on the purpose and means of processing. In the case at hand, the natural persons who unlawfully circulated the electoral rolls with the contentious personal data cannot, by any broad interpretation of the term, be considered as "employees" of the party of N.D.,
- e) finally, it cannot be accepted in a manner that does not allow for reasonable doubt that the purpose and means of processing were "determined" by the party of N.D. and not, for example, by a subset of its executives who sought primarily to benefit Anna Michelle Asimakopoulou and secondarily the party of N.D.

32

In this context and in application of the principle in dubio pro reo, which is a general principle of the rule of law and due to the unity of the legal order, it must also be accepted in administrative law when it comes to imposing burdensome administrative measures against the governed, I am of the opinion that due to these doubts, the examined natural persons and the legal entity of N.D. should not be characterized as responsible processors in this case and therefore, the administrative sanctions provided for in Article 83 of the GDPR for violation of the GDPR should not be imposed on them.

12. Following the above:

The Authority finds that there is a case to exercise its corrective powers under Article 58 paragraph 2 of the GDPR in relation to the established violations and that, based on the circumstances identified, an effective, proportionate, and deterrent administrative monetary fine should be imposed pursuant to the provision of Article 58 paragraph 2 point (h) of the GDPR, both for the restoration of compliance and for the punishment of the unlawful behavior. Furthermore, the Authority took into account the criteria for assessing the fine as defined in Article 83 paragraph 2 of the GDPR, paragraph 5 point (a) of the same article applicable to the present case, the Guidelines for the application and determination of administrative fines for the purposes of Regulation 2016/679 issued on 03-10-2017 by the Article 29 Working Party (WP 253), and the Guidelines 04/2022 of the European Data Protection Board for calculating administrative fines under the General Regulation, as well as the factual data of the examined case and the severity of the violations, taking into particular consideration:

on the one hand

- that the violations concern the fundamental principles of the GDPR,
- the large number of affected subjects (25,610) which at a minimum were affected by the violation, which in fact constitutes the entirety of registered voters abroad,
- that the implemented inadequate policies and measures create risks for other activities of the data controller,

and on the other hand:

- that the categories of personal data involved in the processing do not constitute data that entails a high risk (Articles 9-10 GDPR, communications, location, financial, etc.), while from them no immediate damage or difficulty can arise and
- that the processing does not result in immediate serious consequences for the data subjects,

#### FOR THESE REASONS

##### The Authority

A. Imposes on Menios Koromilas, by majority, under Article 58 paragraph 2 point (h) of the GDPR a fine of ten thousand (10,000) euros for violation of Articles 5 paragraph 1 points (a), (b) and Article 6 paragraph 1 of the GDPR, as analyzed in the reasoning of this decision.

B. Unanimously imposes on the New Democracy party, under Article 58 paragraph 2 point (h) of the GDPR, a monetary fine of thirty thousand (30,000) euros for the violations of Articles 25 paragraph 1 and 32 of the GDPR, as analyzed in the reasoning of this decision. It also orders, under Article 58 paragraph 2 point (g) of the GDPR, the New Democracy party, as the data controller, to delete all data of overseas voters in its possession through the illegal processing described in the reasoning and to remedy the deficiencies in the procedures for the protection of personal data, as described in the reasoning and to ensure their compliance by its party officials.

C. By majority, imposes on the New Democracy party, under Article 58 paragraph 2 point (h) of the GDPR a fine of ten thousand (10,000) euros for violation of Articles 5 paragraph 1 points (a), (b) and 6 paragraph 1 of the GDPR, as analyzed in the reasoning of this decision.

D. By majority, imposes on Nikos Theodoropoulos, under Article 58 paragraph 2 point (h) of the GDPR a fine of ten thousand (10,000) euros for violation of Articles 5 paragraph 1 points (a), (b) and Article 6 paragraph 1 of the GDPR, as analyzed in the reasoning of this decision.

34

The President

The Secretary

Konstantinos Menoudakos

Irini Papageorgopoulou